

Smt. Sipra Nath vs Sri Subhra Narayan Nath on 25 February, 2025

D/L.6.
February 25, 2025.
MNS.

FAT No. 614 of 2018

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CAN 2 of 2023

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CAN 3 of 2024

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CAN 4 of 2024

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CAN 5 of 2024

Smt. Sipra Nath

Vs.

Sri Subhra Narayan Nath

Mr. S. T. Mina,
Mr. Pratickn Sardar

... for the appellant/wife.

Mr. Anit Dey,
Ms. Ritoma Paul

...for the respondent/husband.

Re : CAN 4 of 2024 (condonation application)

1. CAN 4 of 2024 is an application for condonation of delay in filing an application, bearing CAN 3 of 2024, for recall of an order dated January 25, 2024, whereby injunction restraining the respondent-husband from contracting remarriage was granted.
2. The respondent-husband pleads that he is a cancer patient and was under treatment at the relevant juncture and as such, could not be represented at the point of time when the injunction order was passed.
3. Learned counsel appearing for the appellant-wife opposes such prayer and submits that the respondent was very much aware of the filing of the appeal and had already entered appearance in the appeal by filing Vakalatnama.

4. That apart, notice was served at least twice on the respondent-husband in respect of the injunction application and the respondent deliberately chose not to appear at the time when the injunction order was passed.

5. However, insofar as the recall application is concerned, we find that the delay in filing the same is sufficiently explained in view of the illness and nature of ailment of the respondent-husband.

6. Accordingly, CAN 4 of 2024 is allowed on contest, thereby condoning the delay in filing the recall application bearing CAN 3 of 2024.

Re: CAN 3 of 2024 (recall application)

7. CAN 3 of 2024 is now taken up for hearing.

8. Learned counsel appearing for the respondent/husband reiterates his submission in connection with the condonation application as narrated above.

9. Learned counsel for the appellant-wife submits that the respondent-husband, in flagrant violation of Section 15 of the Hindu Marriage Act as well as in the teeth of the pendency of the injunction application, contracted a second marriage and took a risk, knowing fully well of the consequences.

10. Hence, it is submitted that such act on the part of the respondent-husband in violating the law ought not to be condoned.

11. The court, however, is faced with a dilemma. Although it transpires from the records that the respondent had indeed entered appearance in the appeal prior to the injunction application and was served a copy of the injunction application, fact remains that the respondent has contracted remarriage. Even if such remarriage is in violation of Section 15 of the Hindu Marriage Act, the Legislature, in its wisdom, has not introduced any penal sanction against a person who deliberately contracts remarriage despite knowing fully well to the appeal or even within the appellate period for that matter.

12. Under the appropriate provision of the Hindu Marriage Act, such a marriage is neither a void nor a voidable marriage in law.

13. Moreover, there is no penal provision otherwise within the four corners of the Statute to penalize a person who has violated Section 15 of the Hindu Marriage Act.

14. In such view of the matter, although we are mindful of the fact that the respondent has taken a risk in contracting remarriage, which would obviously be subject to the outcome of the present appeal, the court's hands are tied inasmuch as on the date when the injunction order was passed, a second marriage had already been contracted by the respondent, thereby rendering the order of injunction infructuous ab initio.

15. As such, the said order was a nullity even on the day when the injunction order was passed and has to be recalled.

16. However, in view of the respondent-husband, despite having already entered appearance in the appeal and being previously served with a copy of the injunction application, having not appeared in the appeal, the inconvenience and ignominy suffered by the appellant-wife ought to be compensated by costs.

17. Accordingly, CAN 3 of 2024 is allowed, thereby recalling the order of injunction dated January 25, 2024 passed in CAN 1 of 2023 filed in connection with FAT No. 614 of 2018, subject to costs of Rs. 20,000/- being paid within a fortnight from date positively by the respondent-husband to the appellant-wife independent of any alimony order which may be passed.

18. It is made clear that in the event of non-payment of such costs to the appellant, the above order recalling the order dated January 25, 2024 shall automatically stand vacated.

Re: CAN 5 of 2024 (stay application)

19. CAN 5 of 2024 is now taken up for hearing. The said application is for stay of operation of the impugned judgment and decree of divorce obtained by the respondent-husband against the appellant- wife. It would be an absurd proposition that despite the court having been apprised of a second marriage having been contracted by the respondent-husband in pursuance of the impugned divorce decree, a stay order would be passed.

20. There is no scope of passing any stay order, as the impugned divorce decree has already been implemented by the respondent by contracting a remarriage on the premise that the previous marriage with the appellant was severed.

21. However, it is trite law that such second marriage would be subject to the outcome of the appeal and would abide by the result of the appeal.

22. Be that as it may, there is no scope of grant of stay of the impugned decree after the same has been implemented by the respondent by entering into a second marriage.

23. Accordingly, CAN 5 of 2024 is dismissed as not maintainable on the above ground.

Re: CAN 2 of 2023 (alimony application)

24. Heard learned counsel for the parties.

25. Learned counsel for the appellant-wife submits on the strength of the affidavit-of-assets and liabilities of the wife that the wife does not have any income whereas she has to bear educational expenses for her son as well as expenses for her own medical treatment, since she is suffering from various ailments such as neurological disorders, thyroid and diabetes.

26. It is further submitted that the day-to-day expenses of the appellant-wife runs to about Rs.35,000/- per month. The wife seeks a meager amount of Rs.5,000/- per month for the educational expenses of her son.

27. Learned counsel for the respondent-husband opposes the prayer and submits that the net income of the husband is to the tune of Rs.64,584/- per month and as such, since the respondent-husband has to bear the expenses of treatment of his cancer, as well as meet the family expenses, it would not be possible for him to pay alimony to the extent as sought in the application. However, the respondent makes it clear that he is not shying away from bearing the maintenance expenses for his wife.

28. On a perusal of the documents before us, including the affidavits-of-assets of the parties, we find that the husband has disclosed his gross income per month to be Rs.80,124/-.

29. Since the deductions to arrive at the net income have not been disclosed in the salary slip or otherwise, we cannot, for sure, hold that any of the said deductions are statutory deductions.

30. That apart, the respondent seeks to rely on a home loan, which he is allegedly having to repay. However, the said expense is a voluntary expenditure chosen by the respondent and cannot be taken to be a compulsory deduction from his salary.

31. With regard to the medical expenses of the husband, it is rightly pointed out by learned counsel for the appellant-wife that from the annexures to the recall application, bearing CAN 3 of 2024, which has been disposed of immediately hereinabove, it is evident that the husband's treatment is being taken care of by his office and such treatment is cashless insofar as the husband is concerned. It may be relevant to mention here that the respondent is an Assistant Sub-Inspector of the State Armed Police, First Battalion of the Government of West Bengal, enjoying the facility of cashless medical support from his employer.

32. We also find that although the son of the parties, who is about twenty-two years old and living with his mother, the appellant, is no more legally a dependent of the respondent-father, fact remains that the appellant is bearing the expenses of the education of the son, who is not yet established in life, and as such, there is no reason why the son's educational expenses ought not to be incorporated within the requirement of the wife herself.

33. Viewed from such perspective, we are of the opinion that at least one-third of the gross income of the husband should be granted to the appellant- wife as alimony, which comes to a little over the amount of Rs.25,000/-. However, Rs. 25,000/- per month would be a rough estimate of one-third of such gross salary. As for the son, as per the prayer of the appellant-wife, which is very modest, we grant alimony at the rate of Rs.5,000/- to the wife to meet her son's minimum educational expenses.

34. Thus, CAN 2 of 2023 is allowed on contest partially, thereby directing the respondent-husband to pay alimony to the tune of Rs.30,000/- per month to the appellant-wife, which shall be paid by the tenth day of each current month, beginning from March 10, 2025 for the month of March, 2025

and thereafter by the tenth day of each succeeding month, by the mode of online transfer to the account of the wife, the details which are given below:

Bank Name - State Bank of India Branch - Barrackpore Railway Station Name -
Shipra Nath Account No. 33967534042 IFSC No. - SBIN0003071.

35. In so far as the arrear alimony is concerned, the husband shall pay arrear alimony to the appellant- wife at the same rate, that is, at the rate of Rs.30,000/- per month, from July, 2023 till February, 2025. Such arrear shall be paid by four equal monthly installments, the first of which shall be paid by March 10, 2025 and thereafter by the tenth day of each succeeding month. Such payments shall also be made by the mode of online bank account transfer to the wife's bank account as specified above.

36. The meager balance, if any, shall be rounded off with the last installment.

37. The quantum of arrear alimony as indicated above shall be adjusted with the ad hoc amount of Rs.50,000/-, which has already been paid by virtue of the order of this Court by the respondent-husband to the appellant-wife and the arrear shall be treated to be the total quantum taken at the rate of Rs.30,000/- per month by deducting the lumpsum amount of Rs.50,000/- from the same.

38. Insofar as the current alimony is concerned, it is made clear that the amount payable by the respondent-husband, by virtue of this order, shall be the total amount upon adjustment with the figure of the maintenance granted by the criminal court. (Uday Kumar, J.) (Sabyasachi Bhattacharyya, J.)